

former Act and the 66th section of the latter Act trustees who are purchasers are authorised to buy without excluding the application of the Acts, and the 66th section of the latter Act expressly exonerates trustees and their solicitors from all liability for so doing, but nothing in that Act is to be taken to imply that the adoption in connection with or application to any contract or transaction of any further or other provisions, stipulations, or words is improper.

6. **Official searches.**—Sect. 2 of The Conveyancing Act, 1882 (*e*) provides for an official search being made on the request of a purchaser for entries of judgments, Crown debts, and similar matters, and provides that when a solicitor acting for trustees obtains an office copy certificate of the result of the search under the section, the trustees shall not be answerable for any loss that may arise from error in the certificate.

7. **Yorkshire Register.**—As to lands situate in Yorkshire, “The Yorkshire Registries Act, 1884,” (*f*) provides for an official search of the register being *made at [*501] the request of any person, and further exempts any trustee, executor, or other person in a fiduciary position who has obtained a certificate of the result of an official search or a certified copy of any document enrolled in the register, or of any entry in the register from any loss, damage, or injury that may arise from any error in such certificate or copy. And where a deed or will has been enrolled at full length, the comparison of an abstract with the copy so enrolled is to be a sufficient discharge of the duty to compare the abstract with the original document.]

8. **Deposit.**—As a *deposit* is almost invariably required upon a sale by auction, and not uncommonly by private contract, it is conceived that trustees would be justified upon signing the contract in paying a deposit in part discharge *de bene esse* of the purchase-money. But generally the character of trustee is pleaded as an excuse for not paying a deposit, and is allowed.

9. **Where purchase-money is in Court.**—Where the money is in *Court* the trustee must enter into a *conditional contract*,

[(*e*) 45 & 46 Vict. c. 39.]

[(*f*) 47 & 48 Vict. c. 54, ss. 20, 23.]